

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RENAIR MARTIN,

Plaintiff,

Index No.:

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK and ERIC REYNOLDS,

Defendants.
-----X

Plaintiff, RENAIR MARTIN, by and through his attorneys, SULLIVAN PAPAIN BLOCK MCGRATH & CANNAVO, complaining of the defendants, THE CITY OF NEW YORK and ERIC REYNOLDS, upon information and belief and at all times hereinafter mentioned, alleges:

FIRST CAUSE OF ACTION PURSUANT TO 42 USC § 1983

1. That on January 22, 2014, while walking on Bronx Park East towards Allerton Avenue, plaintiff RENAIR MARTIN, was approached by defendant ERIC REYNOLDS ("REYNOLDS") and other officers of the New York City Police Department, fired at, stopped and detained without just cause.

2. That on the aforementioned date, REYNOLDS while acting under the color of law and the color of his authority as a New York City Police Officer, wrongfully, unlawfully and without provocation or justification chased, stopped and detained plaintiff, RENAIR MARTIN.

3. That on the aforementioned date, REYNOLDS, while acting under the color of law and the color of his authority as a New York City Police Officer, wrongfully, unlawfully and without provocation or justification drew their firearms on plaintiff, RENAIR MARTIN.

4. That on the aforementioned date, REYNOLDS, while acting under the color of law and the color of his authority as a New York City Police Officer, wrongfully, unlawfully, and without provocation or justification pushed, pulled, restrained, used excessive force, and shoved plaintiff RENAIR MARTIN.

5. That on the aforementioned date, REYNOLDS while acting under the color of law and the color of his authority as a New York City Police Officer, egregiously and irreparably violated RENAIR MARTIN's Fourth Amendment rights to be free from unreasonable search and seizure, from pretrial deprivations of liberty, and from prosecution without probable cause, as well as his Fifth Amendment right to Due Process.

6. That on the aforementioned date, REYNOLDS was acting under the color of law and the color of his authority as a New York City Police Officer to investigate, promote, facilitate and prolong a malicious, bad faith criminal investigation of plaintiff RENAIR MARTIN. This malicious investigation was undertaken in bad faith, caused by malicious motives, and involved conduct that shocks the conscience.

7. REYNOLDS undertook malicious action in executing RENAIR MARTIN's arrest based on fabricated and/or nonexistent evidence and by vigorously pursuing a criminal investigation that he knew to be unwarranted and baseless.

8. After RENAIR MARTIN's false arrest on January 22, 2014, he was falsely and maliciously charged and prosecuted with various crimes of which he was innocent; and after being transferred into Federal custody on March 2, 2016, the prosecution was abandoned on August 3, 2017.

9. REYNOLDS' actions were performed in the scope of his employment as a New York City Police Officer.

10. REYNOLDS' actions were malicious and evidenced a callous and reckless disregard for, and deliberate indifference to, plaintiff RENAIR MARTIN's constitutional rights, specifically his right to Due Process under the Fifth Amendment and his Fourth Amendment rights to be free from unreasonably search and seizure, from pretrial deprivations of liberty, and from prosecution without probable cause.

11. REYNOLDS owed a duty of care towards the plaintiff and were required to use reasonable diligence to ensure that Plaintiff's arrest and detention were constitutional. Defendants' actions and omissions were negligent and reckless.

12. As a direct and proximate result of REYNOLDS' acts and omissions, Plaintiff has suffered damages, including but not limited to, deprivation of liberty, pain and suffering, extreme mental and emotional distress, loss of income, costs and disbursements and other losses not yet ascertained.

13. As a result of his conduct, THE CITY OF NEW YORK is liable for RENAIR MARTIN's injuries, either because they were integral participants in the misconduct, or because they failed to intervene when they had the opportunity to do so to prevent these violations.

14. Plaintiff is informed and believes and thereon alleges that the defendants' acts were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

SECOND CAUSE OF ACTION PURSUANT TO 42 USC § 1983

15. Plaintiff incorporates by reference all allegations set forth above, as if fully set forth below.

16. REYNOLDS' actions were performed in the scope of his employment as an New York City Police Officer.

17. REYNOLDS' actions were malicious and evidenced a callous disregard for, and deliberate indifference to, plaintiff RENAIR MARTIN's constitutional rights, specifically his right to a fair trial under the Sixth Amendment.

18. REYNOLDS' actions were beyond the plain meaning of his statutory authority.

19. As a direct and foreseeable consequence of REYNOLDS' conduct, plaintiff RENAIR MARTIN was denied his right to a fair trial as afforded by the Sixth Amendment to the United States Constitution.

20. As a direct and foreseeable consequence of REYNOLDS and THE CITY OF NEW YORK's conduct, plaintiff RENAIR MARTIN suffered injuries including damage to his reputation, emotional suffering, past and future economic loss, constitutional deprivations, and other injuries proximately caused and enhanced by REYNOLDS' wrongful conduct.

21. As REYNOLDS actions were intentional, he does not enjoy qualified immunity on the basis of a good faith belief that his actions were lawful.

22. Plaintiff is informed and believes and thereon alleges that the defendants' acts were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION PURSUANT TO 42 USC § 1983

23. Plaintiff incorporates by reference all allegations set forth above, as if fully set forth below.

24. REYNOLDS' actions were performed in the scope of his employment as a New York City Police Officer.

25. REYNOLDS' actions were malicious and evidenced a callous disregard for, and deliberate indifference to, plaintiff RENAIR MARTIN's constitutional rights, specifically his right to a fair trial under the Sixth Amendment.

26. REYNOLDS' actions were beyond the plain meaning of his statutory authority.

27. As a direct and foreseeable consequence of REYNOLDS' conduct, plaintiff RENAIR MARTIN was denied his right to a fair trial as afforded by the Sixth Amendment to the United States Constitution.

28. As a direct and foreseeable consequence of REYNOLDS and THE CITY OF NEW YORK's conduct, plaintiff RENAIR MARTIN suffered injuries including damage to his reputation, emotional suffering, past and future economic loss, constitutional deprivations, and other injuries proximately caused and enhanced by REYNOLDS' wrongful conduct.

29. As REYNOLDS actions were intentional, he does not enjoy qualified immunity on the basis of a good faith belief that his actions were lawful.

30. As REYNOLDS was an employee of THE CITY OF NEW YORK at the time of the aforesaid allegations and claims, his liability is imputed to defendant THE CITY OF NEW YORK.

31. Plaintiff is informed and believes and thereon alleges that the defendants' acts were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and

conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION PURSUANT TO 42 USC § 1983

32. Plaintiff incorporates by reference all allegations set forth above, as if fully set forth below.

33. REYNOLDS actions were performed in the scope of his duty as an employee of THE CITY OF NEW YORK.

34. Following plaintiff RENAIR MARTIN's false arrest on or about January 22, 2014, he was falsely and maliciously charged and prosecuted with various crimes of which he was innocent; and, after being transferred into Federal custody on March 2, 2016, the prosecution was abandoned on August 3, 2017.

35. The malicious prosecution of plaintiff RENAIR MARTIN was instigated by defendant REYNOLDS' malicious and unjustifiable conduct in investigating him without probable cause, and evidenced a callous and reckless disregard for, and deliberate indifference to, plaintiff RENAIR MARTIN's constitutional rights, specifically his right to Due Process under the Fifth Amendment and his Fourth Amendment rights to be free from unreasonably search and seizure, from pretrial deprivations of liberty, and from prosecution without probable cause.

36. REYNOLDS' actions were beyond the plain meaning of his statutory authority.

37. As a direct and foreseeable consequence of REYNOLDS' and THE CITY OF NEW YORK's conduct, plaintiff RENAIR MARTIN suffered injuries including damage to his

reputation, emotional suffering, past and future economic loss, constitutional deprivations and other injuries proximately caused and enhanced by REYNOLDS' wrongful conduct.

38. As REYNOLDS' actions were intentional, he does not enjoy qualified immunity on the basis of a good faith belief that his actions were lawful.

39. As REYNOLDS was an employee of THE CITY OF NEW YORK at the time of the aforesaid allegations and claims, his liability is imputed to defendant THE CITY OF NEW YORK.

40. Plaintiff is informed and believes and thereon alleges that the defendants' acts were willful, malicious, intentional, oppressive, reckless, and/or were done in willful and conscious disregard of Plaintiff's rights, welfare and safety, thereby justifying damages against the defendant in an amount that exceeds the jurisdictional limits of all lower courts in the State of New York which would otherwise have jurisdiction over this matter.

FIFTH CAUSE OF ACTION

41. Plaintiff incorporates by reference all allegations set forth above, as if fully set forth below.

42. Based upon the principles set forth in *Monell v. New York City Department of Social Services*, 436 U.S. 658 (1978), THE CITY OF NEW YORK is liable for all injuries sustained by plaintiff as set forth herein. THE CITY OF NEW YORK bears liability because its policies, practices and/or customs caused plaintiff RENAIR MARTIN's injuries.

43. Defendant THE CITY OF NEW YORK had a duty to adequately train, supervise and discipline their police officers in order to protect members of the public, including plaintiff RENAIR MARTIN, from being harmed by the police unnecessarily. THE CITY OF NEW

YORK and its officials, maintained or permitted one or more of the following official policies, customs, or practices.

- A. Failure to provide adequate training and supervision to New York City Police Officers with respect to constitutional limits on proper arrest and detention;
- B. Selection, retention and assignment of officers with demonstrable propensities for excessive force, violence, dishonesty and other misconduct;
- C. Condonation and encouragement of officers in the belief that they can violate the rights of persons such as Plaintiff with impunity, and that such conduct will not adversely affect their opportunities for promotion and other employment benefits;
- D. Ratification by the highest levels of authority of the specific unconstitutional acts alleged in this Complaint.

44. Defendant THE CITY OF NEW YORK had a duty to adequately train, supervise and discipline its Police Officers in order to protect members of the public, including plaintiff RENAIR MARTIN, from being harmed by such prosecutors unnecessarily.

45. Said defendants were deliberately indifferent to such duties and thereby proximately caused injury to plaintiff RENAIR MARTIN as complained of herein.

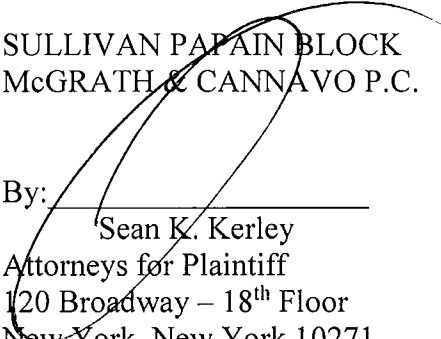
WHEREFORE, plaintiffs pray for damages against the defendants in all Causes of Action herein, in amounts which exceed the jurisdictional limits of all lower courts in the State of New York, which would otherwise have jurisdiction of this matter; for punitive damages in an amount to be determined at trial for fraudulent, willful and wanton, and malicious conduct to

punish defendants for outrageous conduct pursued with actual malice that recklessly and callously disregarded plaintiff's physical and emotional well-being and constitutional rights; an award for reasonable and customary costs, expenses and interest accrued in pursuit of this action, and any other relief deemed just and proper.

Dated: New York, New York
June 11, 2018

Yours, etc.,

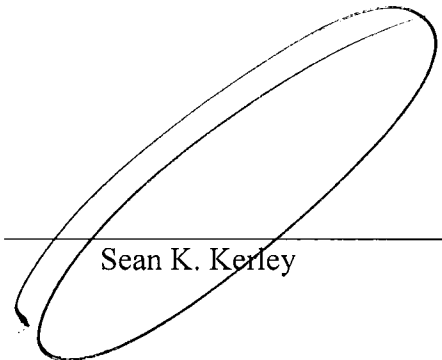
SULLIVAN PAPAIN BLOCK
McGRATH & CANNAVO P.C.

By: 
Sean K. Kerley
Attorneys for Plaintiff
120 Broadway – 18th Floor
New York, New York 10271
(212) 732-9000

VERIFICATION

I, Sean K. Kerley, an attorney admitted to practice in the Courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiffs in the within action. I have read the foregoing Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters I believe to be true. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigation conducted by my office.

Dated: New York, New York
June 11, 2018



Sean K. Kerley